

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE LASALLE

Plaintiff,

-against-

**SUMMONS WITH VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

THE CITY OF NEW YORK; POLICE OFFICER
FELIX BAEZ, TAX ID # 953654, INDIVIDUALLY
AND AS A POLICE OFFICER; POLICE OFFICER
ELVIS DURAN, SHIELD # 21865, INDIVIDUALLY
AND AS A POLICE OFFICER; DET. JUAN
TEJERA, TAX ID # 919967, MTS DET. SQUAD,
INDIVIDUALLY AND AS A POLICE OFFICER;
SGT. MIGUEL FRIAS, TAX ID# 930184,
INDIVIDUALLY AND AS A POLICE OFFICER;
ASSISTANT CHIEF, LARRY W. NIKUNEN,
COMMANDING OFFICER BOROUGH BRONX,
TAX ID # 882753, INDIVIDUALLY AND AS A
POLICE OFFICER; LT. ERIC DYM, TAX ID
933762, INDIVIDUALLY AND AS A POLICE
OFFICER; DEPUTY INSPECTOR JERRY P.
O'SULLIVAN, COMMANDING OFFICER, PSA 7,
TAX ID # 902151, INDIVIDUALLY AND AS A POLICE
OFFICER; LT. JOE DOE, IDENTITY PRESENTLY
UNKNOWN, INDIVIDUALLY AND AS POLICE
OFFICER; SGT. JIM DOE, IDENTITY PRESENTLY
UNKNOWN, INDIVIDUALLY AND AS POLICE
OFFICER; P.O. JOHN DOES # 1-10, IDENTITIES
PRESENTLY UNKNOWN, INDIVIDUALLY AND
AS POLICE OFFICERS,

Defendants.

Plaintiff designates Bronx County as
the place of trial. The basis of the
venue is Bronx place where the
cause of action arose.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 3rd day of May, 2017



EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, New York 10007

P.O. Felix Baez, Tax ID # 953654
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

P.O. Elvis Duran, Shield # 21865
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Det. Juan Tejera, Tax ID# 919967
c/o Midtown South, Detective Squad
357 W 35th Street
New York, NY 10001

Sgt. Miguel Frias, Tax ID# 930184
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Assistant Chief Larry W. Nikunen, Tax ID# 882753
c/o Patrol Boro Bronx
450 Cross Bronx Expy
Bronx, NY 10457

Lt. Eric Dym, Tax ID # 933762
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Deputy Inspector Jerry P. O'Sullivan, Tax ID# 902151
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

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UNKNOWN, INDIVIDUALLY AND AS POLICE
OFFICER; P.O. JOHN DOES # 1-10, IDENTITIES
PRESENTLY UNKNOWN, INDIVIDUALLY AND
AS POLICE OFFICERS,

Defendants.

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The Plaintiff, Jose LaSalle, as and for a Verified Complaint filed by his attorneys, Emdin
& Russell, LLP complaining of the Defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the
City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation
duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, "City",

including its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as the “NYPD”, including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, including on the 5th day of August, 2016 and continuing thereafter, Police Officer Felix Baez, hereinafter referred to as “Baez”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to Police Service Area 7, a/k/a, PSA 7, a police precinct within the Housing Bureau of the NYPD located at 737 Melrose Avenue, Bronx, New York. At all relevant times set forth below Baez acted in the capacity of a police officer and employee of the City of New York. Upon information and belief Baez’ Tax ID is # 953654. “Baez” is being sued individually and as a Police Officer.

4. Upon information and belief, at all times hereinafter mentioned, including thereafter on the 5th day of August, 2016 and continuing thereafter Police Officer Elvis Duran, hereinafter referred to as “Duran”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to Police Service Area 7, a/k/a, PSA7. At all relevant times set forth below Duran acted in the capacity of a police officer and employee of the City of New York. Upon information and belief Duran’s Shield is # 21865. “Duran” is being sued individually and as a Police Officer

5. Upon information and belief, at all times hereinafter mentioned, including on the 5th day of August, 2016 and continuing thereafter Det. Juan Tejera, hereinafter referred to as “Tejera”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to the Midtown South Detective Squad. At all relevant times set forth below Tejera acted in the capacity of a police officer and employee of the City of New York. Upon information and belief Tejera’s Tax ID is # 919967. “Tejera” is being sued individually and as a Police Officer

6. Upon information and belief, at all times hereinafter mentioned, including on the 5th day of August, 2016 and continuing thereafter, Sgt. Miguel Frias, hereinafter referred to as “Frias”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to Police Service Area 7, a/k/a, PSA 7. At all relevant times set forth below Frias acted in the capacity of a police officer and employee of the City of New York. Upon information and belief Frias’ Tax ID is # 930184. “Frias” is being sued individually and as a Police Officer.

7. Upon information and belief, at all times hereinafter mentioned, including on the 5th day of August, 2016 and continuing thereafter, Assistant Chief Larry W. Nikunen, hereinafter referred to as “Nikunen”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to the Patrol Boro Bronx. At all relevant times set forth below Nikunen acted in the capacity of Assistant Chief, Commanding Officer, Borough Bronx and employee of the City of New York. Upon information and belief Nikunen’s Tax ID is # 882753. “Nikunen” is being sued individually and as a Police Officer.

8. Upon information and belief, at all times hereinafter mentioned, commencing on the 5th day of August, 2016 and continuing thereafter, Lt. Eric Dym, hereinafter referred to as “Dym”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to Police Service Area 7, a/k/a, PSA 7. At all relevant times set forth below, Dym acted in the capacity of police officer, i.e. Lt., and employee of the City of New York. Upon information and belief Dym’s Tax ID is # 933762. “Dym” is being sued individually and as a Police Officer

9. Upon information and belief, at all times hereinafter mentioned, commencing on the 5th day of August, 2016 and continuing thereafter, Deputy Inspector Jerry P. O’Sullivan, hereinafter referred to as “O’Sullivan”, was employed as a Police Officer by the “City” and/or “NYPD”, and assigned to Police Service Area 7, a/k/a, PSA 7 as a Commanding Officer. At all relevant times

set forth below O'Sullivan acted in the capacity of a police officer, Deputy Inspector, Commanding Officer and employee of the City of New York and/or NYPD. Upon information and belief O'Sullivan's Tax ID is # 902151. "O'Sullivan" is being sued individually and as a Police Officer

10. Upon information and belief, at all times hereinafter mentioned, commencing on the 5th day of August, 2016 and continuing thereafter, Police Officers John Doe #1- #10, identities presently unknown, were employed as Police Officers by the "City" and/or "NYPD", and assigned to Police Service Area 7, a/k/a, PSA 7. At all relevant times set forth below, John Does #1-10 acted in the capacity of police officer(s) and employee(s) of the City of New York and/or NYPD. They are being sued individually and as police officers.

11. Upon information and belief, at all times hereinafter mentioned, commencing on the 5th day of August, 2016 and continuing thereafter, Sgt. Jim Doe, name presently unknown, was employed as a Police Officer by the "City" and/or "NYPD", and assigned to Police Service Area 7, a/k/a, PSA 7. At all relevant times set forth below, Sgt. Jim Doe acted in the capacity of a police officer Sgt. and employee of the City of New York, and/or NYPD. Sgt. Jim Doe is being sued individually and as a police officer.

12. Upon information and belief, at all times hereinafter mentioned, commencing on the 5th day of August, 2016 and continuing thereafter, Lt. Joe Doe, name presently unknown, was employed as a Police Officer by the "City" and/or "NYPD", and assigned to Police Service Area 7, a/k/a, PSA 7. At all relevant times set forth below, Lt. Jim Doe acted in the capacity of a police officer/Lt. and employee of the City of New York and/or NYPD. Lt. Joe Doe is being sued individually and as a police officer.

13. Upon information and belief the aforementioned named defendants, individually and

collectively, at all times mentioned within this Complaint, were obligated and under a legal duty to follow and uphold the Constitutions of the United States of America and the State of New York.

14. Upon information and belief the aforementioned named defendants, individually and collectively, at all relevant times mentioned within this Complaint were obligated and under a legal duty to follow, abide, uphold and/or enforce the New York State Penal laws.

15. The aforementioned named defendants, individually and collectively, at all relevant times mentioned within this Complaint, were obligated and under a duty to follow, enforce, and execute their respective duties and responsibilities as police officers as set forth within the New York Patrol Guide of the "City" and "NYPD", including its Interim Orders and police memorandum in effect.

16. Upon information and belief, each named defendant, at all relevant times set forth herein was required to read, know, and enforce all NYPD Patrol Guide or guidelines in effect, including Interim Orders and/or police memorandum.

17. Upon information and belief, at all relevant times set forth in this Complaint herein, Nikunen, as Borough Commander Bronx, was responsible for:

- a. Developing specific plans and implementing strategies and programs and procedures to reduce crime and/or fear of crime; and
- b. Utilizing staff to administer, assign, control, coordinate, discipline, evaluate, guide, motivate, supervise and ensure the mission of the command; and
- c. Inspecting each subordinates' commands "Confidential Performance Profile" annually; and
- d. Ensuring, and administrating that operational responsibilities are performed properly;

and

- e. Mentoring and guiding subordinate command executive staff; and
- f. Attending and assuring attendance of executive staff and briefings with Internal Affairs Bureau, Quality Assurance Division and Personal orders section semi-annually.

18. At all relevant times hereafter mentioned within this Complaint, Nikunen was, as a supervisory police officer, in charge of and ensuring compliance with the laws of the United States and State of New York, and the rules and regulations of the "City" and "NYPD" and its officers assigned to the County of the Bronx, including, upon information and belief, all named defendants officers herein, with the exception of Tejera.

19. Upon information and belief, at all relevant times hereunder, Nikunen acted as a supervisory police officer and in a supervisory capacity.

20. Upon information and belief, at all relevant times set forth in this Complaint herein, O'Sullivan, as Commanding Officer of PSA 7, was responsible for:

- a. Proper performance of functions designated for the command; and
- b. Efficiency and discipline of personnel assigned to the command; and
- c. Informing members of command of current directives and orders; and
- d. Patrol, administrative and record keeping functions of the command; and
- e. reviewing disciplinary history of members in performance monitoring programs; and
- f. Instructing and frequently testing the knowledge of members of the command regarding their duties and responsibilities; and
- g. Assigning ranking officers to perform tasks, including forwarding reports and performance evaluations; and

- h. Reviewing activity of members of command; and
- i. Investigating a report of neglect of duty by subordinates; and
- j. Closely monitoring the performance of uniformed members of the service assigned to specialized units; and
- k. Being thoroughly familiar with the Confidential Performance Profile of subordinate members; and
- l. Administering Command Discipline; and
- m. Directing an executive officer to adjudicate command discipline; and
- n. Reading performance evaluations submitted by Sgt. carefully, making sergeants justify the ratings to officers assigned to their squads; and
- o. Reiterating to supervisors that they are responsible for creating a professional work environment for their subordinates; and
- p. Regularly assessing the work environment within the command to determine and maintaining a professional atmosphere and rectifying situations which undermine professional conduct and achievement; and
- q. Advising employees that vulgar language is offensive, unwelcome, and inappropriate for the workplace and subject to disciplining action; and
- r. Encouraging all members of the service to report inappropriate conduct.

21. Upon information and belief at all relevant times sets forth herein O'Sullivan was the supervising officer of Baez, Duran, Frias, Lt. Dym, Lt. Joe Doe, Sgt. Jim Doe and P.O. John Does #1-10, and acted in a supervisory role.

22. Upon information and belief at all relevant times set forth herein and specifically on August 5, 2016 at approximately 11:00 p.m. P.O. John Doe #1 was the Desk Officer at PSA 7.

23. Upon information and belief P.O. John Doe #1, as the Desk Officer was responsible for:

- a. All police operations within the command tour; and
- b. Ensuring that all important or actionable information is relayed to outgoing platoon or appropriate command personnel; and
- c. Inspecting the command for display of any offensive material; and
- d. Supervising arrests process; and
- e. Questioning arresting officers regarding the circumstances of arrest, including evidence recovered; and
- f. Inspecting the property locker and all areas within the command where invoiced property is being held; and
- g. Conducting physical inventory of property; and
- h. Entering results of invoiced property; and
- i. Safeguarding invoiced property during their tour; and
- j. Certifying accuracy and completeness of entries in command log concerning invoices property; and
- k. Notifying command officer of important matters; and
- l. Supervising subordinate members of the command.

24. Upon information belief at all relevant times set forth in this Complaint John Doe #1 acted in the capacity of a supervising officer of "Duran", "Baez", "Frias" and/or John Doe #2-10.

25. Upon information and belief at all relevant times set forth in this Complaint, Nikunen, O'Sullivan, Dym and John Doe #1 knowingly, intentionally, purposely and/or recklessly did not properly perform their respective job descriptions, and/or obligations as supervisors to the detriment of LaSalle as set forth below.

26. Upon information and belief at all relevant times set forth in this Complaint, John Doe # 2 was the evidence/property control specialist at PSA 7.

27. Upon information and belief as the evidence/property control specialist, John Doe # 2 was assigned the duty of receiving property, invoices and/or evidence, including evidence or property obtained from an arrestee's, including, upon information and belief LaSalle's property as set forth below.

28. Upon information and belief, at all relevant times set forth in this Complaint including on August 5, 2016, August 6, 2016 and thereafter, John Doe #2 was required to examine vouchered property, including LaSalle's, to ensure that it and/was in conformance with related documentation, and as set forth below, it was not.

29. Upon information and belief, at all relevant times set forth in this Complaint, John Doe # 2 was required to immediately store and safeguard LaSalle's invoiced property, review and maintain the invoices assigned to LaSalle's property, and secure and maintain the storage area, which housed, upon information and belief, LaSalle's property. Upon information and belief at all relevant times set forth in this Complaint, John Doe #2 failed to perform his duties as required as a Property Control specialist to the detriment of LaSalle.

30. Upon information and belief at all relevant times set forth in this Complaint, John Doe #2, Nikunen, O'Sullivan and/or Dym knew, permitted and/or allowed police officers in PSA 7 to handle, display and pose with evidence as props, including photographing themselves with weapons and drugs and other contraband and posting it on the precinct twitter page under O'Sullivan account.

31. Upon information and belief, at all relevant times set forth in this Complaint LaSalle's property/evidence was not immediately vouchered, safeguarded, sealed and properly maintained.

32. Upon information and belief, at all relevant times set forth in this Complaint, all police officers, including all named defendants/officers herein were/ are required to be:

- a. Familiar with the contents of the Patrol Guide and revisions; and obey lawful orders and instructions of supervisors.

33. That at all times hereinafter mentioned in this Complaint, defendants Duran, Baez Frias, Dym, O'Sullivan, Tejada, Lt. Joe Doe, Sgt. Jim Doe, PO John Does #1-#10 and Nikunen were duly sworn police officers acting on behalf of the City and/or NYPD and were acting under the supervision of said department and according to their official duties.

34. That at all times hereinafter mentioned, the defendants either personally or through their employees, including but not limited to Duran, Baez Frias, Dym, O'Sullivan, Tejada, Lt. Joe Doe, Sgt Jim Doe, PO John Does #1-#10 and Nikunen were acting under the color of state law and/or in compliance with the official rules, regulation, laws, statutes, customs, usages and/or practices of the State or City of New York..

35. That, upon information and belief, at all relevant times hereinafter specified, the City and/or NYPD and/or Nikunen, O'Sullivan, and Dym as supervisors condoned, implicitly or explicitly, and/or were deliberately indifferent to the acts, customs, practices, and usages of it's employees, including the but not limited to the named officers herein which violated clearly established rights of the citizens of New York, including the plaintiff, LaSalle, as set forth in this complaint.

36. That, upon information and belief, at all relevant times hereinafter specified, the City and/or NYPD and/or Nikunen, O'Sullivan, and Dym as supervisors were deliberately indifferent to the need to train, retrain, supervise, monitor, reassign, re-evaluate, discipline, investigate, report, and terminate officers whose acts, customs, and practices violated clearly established

rights of the citizens of New York including the plaintiff, LaSalle, as set forth in this complaint.

37. Each and every act of the defendants alleged herein were done by said defendants while acting within the scope of their employment by the defendant City and/or NYPD

38. Each and every act of the defendants alleged herein was done/performed by said defendants while acting in furtherance of their employment with the defendant City and/or NYPD.

39. At all relevant times hereinafter mentioned in this Complaint, plaintiff is and was a resident of Bronx County., State of New York.

40. At all times hereinafter set forth in this Complaint the plaintiff was not engaged in any criminal or illegal conduct which violated the laws of the State of New York.

STATEMENT OF FACTS

41. Plaintiff is the founder and member of the CopWatch Patrol Unit.

42. The CopWatch Patrol Unit is an organization in which its members canvas the streets of the City of New York and observe, witness, record, and document New York City police conduct and/or interactions with citizens of New York City.

43. Upon information and belief, on or prior to August 5, 2016, LaSalle had posted hundreds of taped police encounters on the internet, including YouTube, and filed numerous Civilian Complaints against numerous police officers, with the Civilian Complaint Review Board, "CCRB", and/or the Internal Affairs Bureau, "IAB".

44. Upon information and belief, on or prior to August 5, 2016, LaSalle was known to the NYPD, including defendants Nikunen, O'Sullivan and others, for his actions with the CopWatch Patrol Unit and/or the reports he made with CCRB and IAB, and videos he posted online.

45. Upon information and belief, on or prior to August 5, 2016, the City and/or NYPD

maintained a police intelligence file on LaSalle, and /or the CopWatch Patrol Unit Organization which, upon information and belief, the named defendants were aware of.

46. On August 5, 2016 at approximately 10:30 p.m. the plaintiff was in the vicinity of a housing complex known as the Patterson Houses, located at or near 325 East 143rd Street, Bronx, New York, herein after referred as to the "location".

47. At that time and place the Plaintiff was dressed in his CopWatch Patrol Unit clothing displaying his affiliation with said organization.

48. At that time and place, the plaintiff observed three plain clothed NYPD police officers questioning and searching two individuals.

49. Upon information and belief the "three officers' names are "Duran", "Baez", and "Frias". The names of the two individuals are presently unknown.

50. The plaintiff began to video record the encounter between the three officers and the two civilians.

51. The officers completed searching and questioning the two individuals and then walked towards the direction where the plaintiff was standing, some 15-20 feet away. Upon information and belief the "officers" were aware that the plaintiff had videotaped the encounter with the two civilians.

52. As the officers passed the plaintiff, words were exchanged between the plaintiff and the "officers". An "officer" stated his objection to the plaintiff's use of "foul" language and the plaintiff stated his objection to the "officers" conduct and cursing.

53. Once the plaintiff expressed that it was not a crime to curse, one of the "officers," believed to be Duran, grabbed the plaintiff and his video camera, handcuffed and arrested the plaintiff.

54. The plaintiff was placed inside an unmarked police car.

55. The plaintiff was transported to PSA 7 precinct, hereinafter referred to as the “precinct” or “PSA 7”.

56. Upon arrival at PSA 7 the plaintiff was removed from the vehicle and brought inside the precinct.

57. Once inside the precinct, the plaintiff’s arrest was met with cheers, applause, and celebration by police officers inside PSA7, including but not limited to P.O. John Does..

58. Additional police officers, John Does (altogether #1-#10) appeared from inside the precinct to join in the celebration of the plaintiff’s arrest, cheering plaintiff’s name and yelling “it’s a party”, “Jose LaSalle” “oh shit!” while laughing, pointing at, and mocking LaSalle.

59. The plaintiff was searched and his property removed and confiscated, including but not limited to two Samsung cell phones, a LG video camera, a Go-pro video recorder, a Sony video camera, a computer laptop, his wallet, keys, headphones, battery, flashlight, notebook and a knapsack with the plaintiff’s personal papers and effects. Upon information and belief said property was itemized and vouchered by “Baez” and approved by “Frias”. The property was placed in voucher # 2000567526 at approximately 2:00 a.m. on August 6, 2016 and classified as being held for “safekeeping”.

60. The plaintiff was also in possession of a two way radio that he used to communicate with members of the CopWatch Patrol Unit. That too was confiscated and held by the police. The radio was classified as “arrest evidence” and placed in voucher # is 2000567549, by Baez and approved by Frias at approximately 3:00 a.m. on August 6, 2016.

61. While examining the two way radio, one officer, upon information and belief the desk officer, deemed it a “police scanner”, and classified the arrest as a felony, stating, while

laughing, “now you’re under arrest for a felony”.

62. The officers ignored the fact that said item was not a scanner. Instead, the officers in the precinct, including upon information and belief the defendants, broke out in cheers, clapping, laughing and celebrating plaintiff’s felony arrest.

63. The “officers” in the precinct gleefully yelled “got him”, “we got him”, “we take care of business”, “I’m so glad” “felon” and other derogatory comments. Upon information and belief the defendants stated that they would tell “everyone in the world”, and that “this is a great collar”.

64. Plaintiff was searched, his shoe laces were removed, and he was placed in a locked holding cell.

65. Meanwhile, unbeknownst to the officers in the precinct, one of LaSalle’s electronic devices, the Galaxy S6, was on and was audio recording their conversations, comments and celebrations within the precinct.

66. One officer could be heard on the recording stating “call operations, because they are looking for guys like this”. Another officer stated “tell the mid-town south captain we saved his life,” followed by laughter. Then an officer stated “I have him,” “this is better than a gun”. (A mid-town south police captain had previously received anonymous transmitted threats. The threats had nothing to do with plaintiff, and the defendant officers made these comments despite having no reason to believe that the plaintiff had anything to do with the threats).

67. In addition to confiscating the plaintiff’s property, upon information and belief, the officer(s) searched the plaintiff’s knapsack and read the plaintiff’s personal notes and papers. Upon information and belief, the “officers” commented how the plaintiff takes down officers names, takes their pictures, and makes fun of them.

68. At approximately 11:20 p.m. the plaintiff's attorney, MJ Williams, came to the precinct to record her representation of the plaintiff.

69. Shortly thereafter a police officer came to plaintiff's cell and asked "how do people know you are here?" However the officer did not elaborate as to why he said that, nor tell the plaintiff that his attorney was at the precinct. In fact, the plaintiff, at all relevant times set forth in this Complaint, was never provided with the opportunity to make a telephone call to his attorney or anyone.

70. Instead, the officers ignored Ms. Williams' representation and unsuccessfully attempted to question the plaintiff without his lawyer present.

71. Meanwhile, while the plaintiff was in custody at PSA 7, upon information and belief, the "officers" attempted to manufacture criminal charges to file against the plaintiff. Upon information and belief, the "officers" could be heard on the recording plotting/discussing their intent/desire to charge the plaintiff with a felony.

72. Upon information and belief the officers searched the penal law for various felonies to charge the plaintiff with.

73. The officers can be heard on the audio recording acknowledging, and then later ignoring exculpatory facts, i.e. that the plaintiff never got within 15-20 feet of them while they were searching the two civilians. Yet, they still charged the plaintiff with interfering with governmental administration.

74. The officers can also be heard on the audio recording acknowledging that the plaintiff was eligible to receive a Desk Appearance Ticket or DAT, which would allow the plaintiff to be released from custody and go home with a court date to appear in court.

75. The officers did not even process the case as DAT, or complete a DAT Worksheet.

Instead, the plaintiff remained in custody for approximately 24 hours. Upon information and belief the defendants actively attempted to keep the plaintiff in custody as long as possible.

76. Officer Duran, the arresting officer filled out an arrest report accusing the plaintiff of committing the crimes of criminal use of an access device, a violation of penal law 190.76, an E felony, unlawful possession of radio devices, a violation of penal law 140.40, a misdemeanor, and disorderly conduct, a violation of penal law 240.20 a violation. The arrest report was signed off on and approved by Frias. All charges that the plaintiff was innocent of.

77. At approximately 6:00 a.m. on August 6, 2016, the plaintiff was transported from PSA 7 in handcuffs to Bronx Central Booking for arraignment.

78. The plaintiff was placed in a locked holding cell at Bronx Central Booking.

79. The plaintiff was held inside the locked holding cell(s) inside Bronx Central Booking until approximately 9:00 p.m. on August 6, 2016.

80. At 9:00 p.m. on August 6, 2016, the plaintiff was removed from his holding cell and handcuffed. The plaintiff was brought to doors leading out of the building and was released from custody/confinement without explanation.

81. Upon information and belief, the plaintiff was released from custody/confinement when the Bronx District Attorney's Office declined to prosecute the plaintiff due to lack of evidence to prove that LaSalle committed any crime.

82. Plaintiff then walked to PSA 7 to retrieve his property. The plaintiff presented a property slip to an officer and his property (electronic equipment and personal effects, but not, upon information and belief, his two way radio) were returned to him.

83. Upon information and belief, upon learning that the Bronx District Attorney's Office declined prosecution, O'Sullivan contacted Nikunen who then called the Bronx District

Attorney, Darcel Clarke, requesting that her office reinstate the criminal charges against the plaintiff.

84. Upon information and belief, Nikunen claimed that the Assistant District Attorney who declined prosecution of the plaintiff's criminal charges, upon information and belief Nicole Fitzpatrick, was inexperienced and improperly declined to prosecute the plaintiff's case.

85. Upon information and belief, District Attorney Clarke was purposely provided false and misleading information by Nikunen concerning the plaintiff, including but not limited to representations that LaSalle was in possession of a scanner and used it illegally, that he was suspected of making threats against the police captain, that LaSalle actively interfered with a police investigation at the Patterson Houses and/or that LaSalle disobeyed a lawful police order.

86. Upon information and belief, District Attorney Clarke was wrongfully informed by Nikunen that the plaintiff needed to be rearrested, the scanner obtained and searched for evidence of wrongdoing, and that LaSalle did in fact commit the crimes as alleged at the Patterson Houses as set forth above.

87. Upon information and belief Nikunen did not inform District Attorney Clarke that the NYPD was still in possession of LaSalle's scanner.

88. Nikunen, O'Sullivan, and all defendants had no objective reason to believe that the plaintiff engaged in said threats to the Police Captain, and in fact plaintiff did not engage in said threats against the Captain.

89. Upon information and belief, Nikunen's, O'Sullivan's, Dym's, Baez', Duran's, Frias', and other police officers whose identities are presently unknown, real purpose, motive or objective was to re-arrest the plaintiff and to confiscate, examine and/or destroy LaSalle's other electronic devices, i.e. cell phones, video cameras etc. which held/stored incriminating and

damaging information/evidence against the defendants..

90. Upon information and belief the defendants knew, feared and/or believed that the plaintiff had incriminating information against the defendant officers saved on the electronic devices previously confiscated from the plaintiff, which were vouchered for safekeeping by the police and then released back to the plaintiff. This information was not disclosed to District Attorney Clarke.

91. After leaving PSA 7 with his property on August 6, 2016, the plaintiff met with friends at the Crown Diner located at 79 East 161st Street, Bronx New York at approximately 9:25 p.m.

92. Plaintiff was at said diner for approximately 30 minutes when several officers, including, upon information and belief, O'Sullivan, Dym, Lt. Joe Doe, Sgt. Jim Doe and a plain clothes officer wearing a blue tee shirt arrived.

93. The plaintiff was asked by the "officers" to speak with them at a booth away from his associates.

94. One officer, believed to be Dym, told LaSalle "we need to talk because you were released without a date to return to court and we don't want you to miss the court date and have a warrant for your arrest".

95. Yet instead of immediately serving the plaintiff with a Summons or a Desk Appearance Ticket, Dym and one other officer questioned the Plaintiff concerning the whereabouts of his property, making it clear that they (the police) were looking for his phone(s) and recording devices.

96. Lt. Dym was on a phone and plaintiff heard the conversation in which it was stated "we need the phone(s)".

97. The plaintiff was re-arrested at approximately 10:30 p.m. on August 6, 2016 at the Crown

Diner, placed in handcuffs and had his property confiscated, i.e. two cell phones, LG video camera, Go Pro video camera, electronic equipment etc. by the defendants.

98. The plaintiff was again transported to PSA 7 in handcuffs.

99. The plaintiff remained in handcuffs while inside PSA 7.

100. At the precinct, defendant Dym asked the plaintiff for the password to his cell phone. When plaintiff answered "speak to my lawyer" Dym replied "it doesn't matter we have your phone number". Upon information and belief, O'Sullivan was present during the conversation and he, as well as Dym and Nikunen, approved of plaintiff's re-arrest and confiscation of property (evidence).

101. The plaintiff remained in handcuffs for over sixty (60) minutes before he was once again transported to Bronx Central Booking in handcuffs.

102. Plaintiff was put inside a cell in Bronx Central Booking and remained there for approximately thirty (30) to forty-five (45) additional minutes, before an officer presented him with the option of remaining there (in custody) or signing a Desk Appearance Ticket.

103. The plaintiff signed for the Desk Appearance Ticket and was released after midnight on August 7, 2016. The Desk Appearance Ticket did not list any charges against the plaintiff. The Desk Appearance Ticket required plaintiff to appear in Court on October 17, 2016. It was issued by Duran.

104. After his release from Bronx Central Booking, the plaintiff went back to PSA 7 to get his property back.

105. The plaintiff spoke with O'Sullivan and one other officer, who refused to return the plaintiff's property other than his keys and hat.

106. Upon information and belief, the plaintiff's property, i.e. his 2 cell phones, Go-pro

camera, LG video camera, etc. was re-vouchered and reclassified as “arrest evidence” and/or investigatory evidence and retained by the NYPD.

107. The Samsung Galaxy S6 Edge, Galaxy S7 Edge, Go-Pro camera (hero), 2 Sandisk sim cards, 2 cell phone accessories, 2 video camera recorders, LG and model Hero that was confiscated on the evening of August 6, 2016 was vouchered by the defendants on invoice #2000568274. The invoicing officer is listed as “Duran”. The property was not immediately vouchered. The date that the property was vouchered is listed as August 8, 2016, and the property category was reclassified and listed as “investigatory”.

108. On August 24, 2016, items from invoice # 2000568274 were removed and re-vouchered under invoice # 2000573703. The invoicing officer is listed as “Duran” and approved by “Frias”. The property that is invoiced under # 2000573703 included 1 cell phone Galaxy S6 Edge, 1 Galaxy S7 Edge cell phone, two cell phone accessories and 1 Sandisk model sim card.

109. Also on August 24, 2016, the two cameras: Go-pro Hero and LG camera, were removed from invoice # 2000568274 and re-vouchered under invoice # 200053705. The invoicing officer is listed as “Duran” and approved by “Frias”.

110. One of the Sandisk sim cards, that was originally vouchered on invoice #2000568274, was missing. It was not re-vouchered under invoice numbers 2000573703 or 200053705.

111. Furthermore, upon information and belief, after the plaintiff’s re-arrest on the evening of August 6, 2016, officers from PSA 7 were attempting to hack/access plaintiff’s cell phones and/or video devices, and upon information and belief, deleted evidence contained therein.

112. Plaintiff received notification(s) from a phone application called “lockwatch” that someone attempted to unlock his Samsung S6 phone at 10:46 p.m., 10:48 p.m., 10:49 p.m. and 11:01 p.m. EST. on August 6, 2016, while said phones were in police custody. The GPS location

of the phone while it was being accessed was at PSA7. The police did not have a warrant to access/search said phone, nor permission or authority from the plaintiff to do so.

113. Upon information and belief, the defendants/police also accessed/hacked plaintiff's other phone, the Galaxy S7, as well as his video recording devices.

114. When plaintiff eventually received his property back on or about January 26, 2017, a sim card from the LG 360 was removed, and the memory card from the GO Pro Hero was missing. The Go Pro memory card contained video and audio recordings of the subject incident.

115. The defendants also erased all audio, pictures, and video from the Galaxy S7 cell phone, which required removing the memory card to do so.

116. The defendants did not have a search warrant to access said devices, tamper with said devices, use said devices, remove the memory card, or view and/or delete plaintiff's private property/information which included his pictures, videos and audio clips. Nor did they have plaintiff's permission or consent to do so. Further they had no authority to remove, erase, review, watch, listen to and/or destroy plaintiff's property.

117. Upon information and belief, the defendants tampered with and/or destroyed plaintiff's property in an attempt to destroy evidence of police misconduct, and of plaintiff's innocence.

118. Upon information and belief, a police officer, upon information and belief "Duran", submitted a false affidavit and/or provided false testimony in support of a search warrant for plaintiff's two way radio.

119. Upon information and belief, Duran signed and provided a statement under oath claiming to recognize the plaintiff's voice as being the same voice which made threats against the Midtown South Precinct Captain. He provided said statement in order to obtain a search warrant for plaintiff's two way radio transmitter.

120. Plaintiff never met or spoke with P.O. Duran prior to August 5, 2016.

121. Plaintiff never made any threat against a Police Captain.

122. Upon information and belief Duran did not at any point recognize the plaintiff's voice or compare it to any previously recorded threats against the Police Captain.

123. Upon information and belief, a Criminal Court Judge, name presently unknown, signed a search warrant (date presently unknown) to search/examine the plaintiff's two way radio based on the false affidavit submitted by Duran.

124. Upon information and belief, on August 9, 2016 Det. Tejera removed the two way radio from invoice number 2000567549 for purposes of examining it for any evidence of threats made from it against the aforementioned Police Captain.

125. Upon information and belief Tejera and the NYPD found no evidence of any wrongdoing based upon the examination of the plaintiff's two way radio.

126. The two way radio was then re-vouchered on August 23, 2016 as arrest evidence by "Baez" and approved by "Sgt. Michael Beltcker". The invoice # was 2000573150. It remained in NYPD custody.

127. Upon information and belief, on September 8, 2016, an individual by the name of Jay Peralta, age 20, was arrested and charged with the aforementioned threats against the Police Captain.

128. Upon information and belief, the defendants individually, collectively and acting in concert with one another : falsely arrested LaSalle; fabricated false charges against LaSalle; filled out and submitted false paperwork/police reports; provided and made false statements to the Court and the prosecutor's office; confiscated, tampered with and destroyed plaintiff's property to cover-up the illegal arrest of the plaintiff and/or the improper stop, question and frisk

of the two civilians outside the Patterson Houses, and/or the improper conduct at the PSA 7; engaged in an illegal search and seizure of the plaintiff; retaliated against the plaintiff; and conspired to deny the plaintiff a fair trial and due process of the law.

129. Defendant Duran filled out the police complaint and arrest reports falsely alleging that the plaintiff “refused to comply with a lawful order of the police to disperse”. The complaint was entered by Baez and reviewed and approved by Frias.

130. The arrest report falsely accused the plaintiff of violating penal law sections 190.76, criminal use access device-1st, 140.40, unlawful possession radio devices and 240.26 discon/refusing to move on.

131. The Criminal Court complaint, docket # 2016BX044530 that was signed by P.O. Duran on August 6, 2016, falsely charged the plaintiff with violating P.L. 195.05 (obstructing governmental administration), 240.20 (disorderly conduct), 240.26 (2) and (3) (harassment).

132. Said complaint was signed by P.O. Elvis Duran for the purpose of prosecuting the plaintiff.

133. P.O. Duran, in the Criminal Court Complaint, falsely stated that plaintiff “came towards deponent (himself) and his partners, yelling at them.” The Complaint further falsely states that this occurred while the officers approached two individuals for the purpose of issuing summonses.

134. The Complaint signed by Duran further falsely accused plaintiff of following Duran and his partner, and refusing a lawful order to disperse.

135. P.O. Duran further falsely stated in the Criminal Court Complaint that the plaintiff’s (LaSalle’s) conduct not only cause him fear of his physical safety and harm, but he was unable to investigate the two individuals stopped and write the summonses.

136. The defendants, including Frias, Baez and the named supervisors Dym, O'Sullivan, Nikunen, Lt. Joe Doe, Sgt. Jim Doe etc., knew the aforementioned statements were false and remained silent and did nothing to correct the false statements.

137. Upon information and belief the defendants acknowledged that there was no sustainable charge of obstructing governmental administration in that the plaintiff never got within 15-20 feet of them; that he was advised to stay away and he complied. Yet they still charged the plaintiff with committing that crime in their police paperwork, and in statements to the District Attorney's Office.

138. Upon information and belief no summonses were issued, nor was a stop and frisk report provided to the two civilians who were stopped and searched by "Duran," "Baez" and/or "Frias" on August 5, 2016 outside the Patterson Houses. The search of the two individual, had been completed when "Baez", "Duran" and "Frias" arrested the plaintiff.

139. Upon information and belief Patrol Guidelines and Interim Orders required Duran, Baez and Frias to issue a stop, question and frisk card/report to the two individuals who were stopped and searched outside the Patterson Houses on August 5, 2016. Duran Baez and Frias did not comply with this requirement.

140. All criminal charges filed against the plaintiff by the defendants were false and unsupported by any evidence.

141. Upon information and belief, all police officers including the named defendants herein, are trained, or supposed to be trained by the City and/or NYPD and advised that intentionally making a false statement is prohibited, and subject to disciplinary action, including dismissal.

142. Upon information and belief, NYPD police officers are rarely brought up on departmental charges or face departmental discipline for making false or misleading statements

by the defendant City and/or NYPD, thereby allowing its' officers to engage in said conduct and act(s) (as alleged herein) with impunity.

143. Upon information and belief, all police officers, including named defendants officers herein, at all relevant times hereunder, were prohibited by the Patrol Guide from manipulating manually or electronically any recorded media coming into possession of the Department as evidence or for investigative purposes.

144. Upon information and belief the defendant officers violated the Patrol Guidelines by accessing, removing and/or deleting LaSalle's stored information as set forth above, on or about August 5, 2016 and thereafter.

145. As a result of the false charges filed against the plaintiff, he was incarcerated, imprisoned, denied access to his property, denied access to his lawyer, was compelled to hire legal counsel and attend Court appearances on October 17, 2016, November 21, 2016 and January 12, 2017. Plaintiff's property was tampered with and destroyed and he sustained a loss of freedom and emotional trauma.

146. On January 12, 2017 all criminal charges were dismissed against the plaintiff by application of the Bronx District Attorneys Office.

147. That notice of the plaintiff's claim and notice of intention to sue for damages as well as a supplemental notice of claim which set forth the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the Comptroller of the defendant "City" and the Corporation Counsel of the City of New York.

148. That a 50 (h) hearing was held on March 15, 2017.

149. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any

adjustment or payment thereof.

150. That this action is commenced within one year and 90 days after the cause of action arose.

151. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR FALSE ARREST
AGAINST CITY OF NEW YORK, "DURAN", "BAEZ" AND "FRIAS"

152. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "151" with the same force and effect as if more fully and at length set forth herein.

153. That the defendant, City of New York, their agents, servants and/or employees including but not limited to Duran, Baez, and Frias, acted with intent to and did arrest the plaintiff on August 5, 2016 at approximately 10:30 p.m. in front of the Patterson House in Bronx County, New York.

154. That the plaintiff, without his consent or just cause, was taken into custody, arrested, and held against his will until he was released on August 6, 2016 at approximately 9:00 p.m. after the District Attorney's Office declined to prosecute the plaintiff.

155. That the defendants knew that they did not have probable cause to arrest the plaintiff and that the charges filed against him were false

156. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST ALL
NAMED DEFENDANTS FOR FALSE ARREST

157. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "156" with the same force and effect as if more fully and at length set forth herein.

158. That the defendant, City of New York, their agents, servants and/or employees including but not limited to Nikunen, Dym, O'Sullivan, Lt. Joe Doe, Sgt. Jim Doe, upon information and belief, acted in concert with the knowledge and approval of the other named defendants arrested plaintiff on August 6, 2016 at approximately 10:20 p.m. inside the Crown Diner in Bronx County.

159. That the plaintiff, without his consent or just cause, was taken into custody, arrested, and held against his will until he was released on August 7, 2016 at approximately 12:45 a.m. after being issued a Desk Appearance Ticket.

160. That the defendants knew that they did not have probable cause to arrest the plaintiff and that the charges were false.

161. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR FALSE
IMPRISONMENT AGAINST ALL
DEFENDANTS

162. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "161" with the same force and effect as if more fully and at length set forth herein.

163. That on August 5, 2016 the defendant, City of New York, their agents, servants and/or

employees including Duran, Baez, and/or Frias, and other named officers acting in concert, acted with intent to imprison the plaintiff.

164. That the plaintiff, without his consent or just cause, was taken into custody on August 5, 2016 at approximately 10:30 p.m. and held against his will until he was released on August 6, 2016 at approximately 9:00 p.m.

165. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT AGAINST
ALL NAMED DEFENDANTS

166. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "165" with the same force and effect as if more fully and at length set forth herein.

167. That the defendant, City of New York, their agents, servants and/or employees including Duran, Baez, Frias, Dym, Nikunen, O'Sullivan and the other named officers, acting in concert, acted with intent to imprison the plaintiff.

168. That the plaintiff, without his consent or just cause was taken into custody on August 6, 2016 at approximately 10:20 p.m. and held against his will until he was released on August 7, 2016 at approximately 12:45 a.m.

169. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR ASSAULT AND BATTERY AGAINST THE CITY
OF NEW YORK, "DURAN", "BAEZ" AND "FRIAS"

170. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "169" with the same force and effect as if more fully and at length set forth herein.

171. That plaintiff on August 5, 2016 was, without just cause or reason, was grabbed, touched, handcuffed, searched and/or fingerprinted by defendants Duran, Baez and/or Frias, while acting in the performance of his/their duties as police officers.

172. That all said contact was committed without plaintiff's permission or consent. That all said contact was unlawful and without privilege.

173. That all contact committed by defendant, City of New York, through their agents, servants, and/or employees, including the above Duran, Baez, and/or Frias and was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff annoyance, alarm and/or suffering.

174. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

175. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR ASSAULT AND BATTERY ON BEHALF OF THE
PLAINTIFF AGAINST ALL NAMED DEFEDANTS

176. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "175" with the same force and effect as if more fully and at length set forth herein.

177. That plaintiff on August 6, 2016, at approximately 10:20 p.m. and thereafter, without just cause or reason, was grabbed, touched, handcuffed, searched and/or fingerprinted by defendants Dym, O'Sullivan, Lt. Jim Doe, Sgt. Joe Doe, acting in concert with Nikunen and the other named defendants, while acting in the performance of his/their duties as police officers.

178. That all said contact was committed without plaintiff's permission or consent.
That all said contact was unlawful and without privilege.

179. That all contact committed by defendant, City of New York, through their agents, servants, and/or employees, including Dym, O'Sullivan, Lt. Jim Doe, Sgt. Joe Doe, acting in concert with Nikunen and the other named defendants and was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff annoyance, alarm and/or suffering.

180. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

181. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR MALICIOUS
PROSECUTION AGAINST ALL
DEFENDANTS

182. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "181" with the same force and effect as if more fully and at length set forth herein.

183. That the plaintiff was twice arrested, issued a Desk Appearance Ticket and then had criminal charges falsely filed against him on Court Docket # 2016BX04430 by the defendants with the intent to prosecute the plaintiff.

184. That the plaintiff did not commit any crime or violation for which he was charged in the complaint, docket number 2016BX04430.

185. That the defendants knew or should have known that the plaintiff did not commit the crime(s) or violation(s) for which he was charged.

186. That the plaintiff was innocent of all charges.

187. That the defendants acted with malice in arresting, charging and prosecuting the plaintiff.

188. As a result thereof the plaintiff was caused to attend court proceedings and hire legal counsel.

189. All the criminal charges were dismissed against the plaintiff on January 12, 2017.

190. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR TRESPASS TO CHATTELS/
CONVERSION/DESTRUCTION OF PLAINTIFF'S PROPERTY
AGAINST THE DEFENDANTS

191. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "190" with the same force and effect as if more fully and at length set forth herein.

192. On August 5, 2016 at approximately 10:30 p.m., and on August 6, 2016, at approximately 10:20 p.m. the defendants acting in concert and as agents of the City of New York, confiscated and took possession of plaintiff's property i.e. two Samsung cell phones, a LG video camera, a Go-pro video recorder, a Sony video camera, sim memory cards, a computer laptop, wallet, keys, headphones, battery, flashlight, notebook and personal papers and effects.

193. Said property, as set forth above was in the exclusive care and custody of the

defendants, who exercised dominion and control over the property.

194. The plaintiff was the owner of said property and did not consent to the defendants' possession, use of, retention and control of it.

195. On or about January 26, 2017, the aforementioned property was returned to the plaintiff in a damaged and/or altered state, including but not limited to one memory card being deleted and another removed and not returned, and still other property illegally attempted to be accessed.

196. Said property and the content therein was the personal property and intellectual property of the plaintiff and contained evidence of police misconduct and/or exculpatory evidence and personal information, and the retention, removal and destruction thereof by the defendants was not consented to by the plaintiff.

197. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR RELIEF ARISING FROM THE AUGUST 5,
2016 FALSE ARREST FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42
U.S.C. § 1983 AND THE UNITED STATES CONSTITUTION AGAINST THE
NAMED DEFENDANT "OFFICERS"

198. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "197" with the same force and effect as if more fully and at length set forth herein.

199. All of the aforementioned acts of defendant City by and through, their agents, servants and employees, were carried out under the color of state law.

200. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth

Amendments to the Constitution of the United of America, and in violation of 42 U.S.C. § 1983.

201. The acts complained of, including the false arrest of the plaintiff on August 5, 2016, were carried out by the aforementioned individual defendants in their capacities as police officers under the color of law, with all of the actual and/or apparent authority attendant thereto.

202. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department, including but not limited to Nikunen and/or O'Sullivan.

203. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

204. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely arrested, falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

205. As a result of the forgoing, plaintiff was deprived of liberty, suffered emotional distress, loss of property, cost and expenses and was otherwise damaged and injured. As a result of the foregoing, plaintiff is entitled to compensatory damages, attorney's fees (42 USC 1988), punitive damages, expert's fees, costs and disbursements.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR RELIEF ARISING FROM THE AUGUST 6,
2016 FALSE ARREST UNDER 42 U.S.C. § 1983 AND THE UNITED STATES
CONSTITUTION AGAINST THE DEFENDANT OFFICERS

206. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "205" with the same force and effect as if more fully and at length set forth herein.

207. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

208. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United of America, and in violation of 42 U.S.C. § 1983.

209. The acts complained of, including the false arrest of the plaintiff on August 6, 2016 at the Crown Diner, were carried out by the aforementioned individual defendants in their capacities as police officers, and/or supervisory police officers under the color of law, with all of the actual and/or apparent authority attendant thereto.

210. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

211. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

212. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely

arrested, falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

213. As a result of the forgoing, plaintiff was deprived of liberty, suffered motional distress, loss of property, cost and expenses and was otherwise damaged and injured. As a result of the foregoing, plaintiff is entitled to compensatory damages, attorney's fees (42 USC 1988), punitive damages, expert's fees, costs and disbursements.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR RELIEF UNDER NEW YORK
STATE LAW: NEGLIGENT HIRING, TRAINING, SUPERVISION AND
RETENTION

214. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "213" with the same force and effect as if more fully and at length set forth herein.

215. The City and NYPD were negligent, careless and/or reckless or deliberately indifferent in the hiring, training, retention, supervision, direction, control, appointment, monitoring, discipline and/or promotion of the their agents, servants, and/or employees, including but not limited to the named defendant police officers, in that said employees lacked the experience and ability to be employed by the City and/or NYPD or employed in the capacity to which they were assigned on all relevant dates herein; in failing to exercise due care and caution in their hiring, appointment and promotion practices, and in particular, hiring individuals, retaining, assigning and/or promoting defendant officers who lacked the training, or mental capacity, ability and/or temperament or moral compass to function as employees of said defendants; in that the defendant-employees lacked the maturity, sensibility, integrity and intelligence to be employed by said defendants; in that said defendants knew of the lack of ability, experience and maturity of

the defendant-employees when they hired them, retained them, assigned them and promoted them, in that said defendants, their agents servants and/or employees, failed to suspend and/or terminate the defendant-employee(s) when such action was either proper or required; and in being otherwise careless, negligent and reckless in the instance.

216. The failure of the City and NYPD to adequately train their agents, servants and employees, including but not limited to the defendant police officers, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the Charter, rules and regulations of the City of New York and the United States Constitution and their own Patrol Guide, is evidence of the reckless lack of cautious regard for the rights of the public in general and plaintiff in particular, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

217. The City and NYPD knew or should have known in the exercise of reasonable care, the propensities of their agents, servants and employees, including but not limited to the defendant police officers, to engage in the wrongful conduct heretofore alleged in this Complaint.

218. The City and NYPD knew or should have known that their policies, customs and practices, as well as their negligent hiring, retention, supervision training, appointment and promotion of their agents, servants and employees, including but not limited to the defendant police officers, created an atmosphere where the most prominent offenders felt assured that their most brazen acts of abuse, misconduct and neglect would not be swiftly and effectively investigated and prosecuted.

219. That the mistreatment and abuse of the plaintiff, as set forth above, was the reasonably foreseeable consequence of said defendant's negligent conduct.

220. The aforesaid acts of the City and NYPD, their agents, servants and employees,

resulted in the plaintiff being harassed, intimidated, threatened, searched, assaulted, battered, falsely detained, arrested and imprisoned, and his civil rights being violated.

221. As a result of the foregoing, plaintiff is entitled to compensatory damages, costs and disbursements.

AS AND FOR AN TWELFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR RELIEF ARISING FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983 AGAINST ALL NAMED
DEFENDANTS

222. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "221" with the same force and effect as if more fully and at length set forth herein.

223. Defendants, acting in concert, misrepresented and falsified evidence before the Bronx District Attorney and/or Criminal Court.

224. Defendants, acting in concert, did not make a complete and full statement of facts to the Bronx District Attorney Office and/or the Court.

225. Defendants, acting in concert, withheld and/or destroyed exculpatory evidence from the Bronx District Attorney.

226. Defendants, acting in concert, were directly and actively involved in the initiation of criminal proceedings against the plaintiff.

227. Defendants lacked probable cause to initiate criminal proceedings against the plaintiff.

228. Defendants acted with malice in initiating criminal proceedings against the plaintiff.

229. Defendants were directly and actively involved in the continuation of criminal proceedings against the plaintiff.

230. Defendants lacked probable cause to continue criminal proceedings against the plaintiff.

231. Defendants acted with malice in continuing criminal proceedings against the plaintiff.

232. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

233. Specifically, defendants filed false police reports, failed to amend or supplement the false reports, submitted false charges against the plaintiff and signed a false accusatory instrument to prosecute the plaintiff, and/or presented the court with false information to secure a search warrant.

234. Notwithstanding the perjured and false statements and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor on or about January 12, 2017, when the Bronx District Attorney's Office dismissed all criminal against the plaintiff.

235. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, plaintiff was compelled to attend legal proceedings, hire legal counsel and plaintiff was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

236. As a result of the foregoing, plaintiff is entitled to compensatory damages, attorney's fees (42 USC 1988), punitive damages, expert's fees, costs and disbursements.

AS AND FOR AN THIRTEENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR RELIEF ARISING FROM THE ARREST
FOR DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER
42 U.S.C. § 1983 AGAINST ALL NAMED DEFENDANTS

237. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "236" with the same force and effect as if more fully and at length set forth herein.

238. Defendants created false evidence, i.e. statements, testimony, against plaintiff.

239. Defendants created false evidence and provided false information to the Bronx District

Attorney and/or to prosecutors in the Bronx District Attorney's office.

240. Defendants accessed/hacked into plaintiff's electronics equipment which contained audio and video footage of the underlying arrest and removed, tampered with and/or destroyed said evidence which was exculpatory.

241. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, and in deleting, tampering with and destroying evidence, the defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

242. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints without probable cause.

243. As a result of the foregoing, plaintiff is entitled to compensatory damages, attorney's fees (42 USC 1988), punitive damages, expert's fees, costs and disbursements.

AS AND FOR AN FOURTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS DURAN, FRIAS AND BAEZ UNDER 42 U.S.C. § 1983
FOR VIOLATING PLAINTIFF'S FIRST AMENDMENT RIGHTS

244. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "243" with the same force and effect as if more fully and at length set forth herein.

245. Plaintiff was exercising his First Amendment rights when he recorded police officers on August 5, 2016, outside the Patterson Houses at approximately 10:30 p.m. engaging in what appeared to be an improper stop and search of two unknown civilians.

246. The plaintiff's arrest followed his recording of the aforementioned police encounter

involving Duran, Frias and Baez.

247. Plaintiff's arrest and prosecution was motivated by, or substantially caused by, or arising from his exercise of his First Amendment Right to record police performing their official duties in a public place.

248. At all relevant times, the actions of Duran, Baez and Frias were committed in the course of their respective employment as a police officer by the City of New York and the NYPD.

249. LaSalle's arrest was an attempt to punish and chill plaintiff's efforts in recording and reporting police abuse of rights.

250. Plaintiff's arrest and prosecution infringed upon the plaintiff's exercise of his First Amendment Rights. Thus, plaintiff suffered an injury as a result of the defendant's conduct.

251. As a result of the foregoing, plaintiff is entitled to compensatory damages, attorney's fees (42 USC 1988), punitive damages, expert's fees, costs and disbursements.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION
AGAINST THE NAMED DEFENDANTS UNDER
42 U.S.C. § 1985 AND 1986 "CONSPIRACY"

252. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "251" with the same force and effect as if more fully and at length set forth herein.

253. Defendants, City and NYPD, their employees, agents and/or servants, including but not limited to the defendant police officers and supervisors, acting under the color of law, willfully conspired with one another to deprive the plaintiff of his constitutional rights, including but not limited to his right: to be free from cruel and unusual punishment; to be free from false arrest and false imprisonment; to be free from police harassment and intimidation; to be free from

unlawful search and seizure; to equal protection of the law; to equal privileges and immunities under the law; to associate and speak freely; to a fair trial; and to have access to and seek redress in the Courts.

254. It was part of said conspiracy that said defendants did cause and/or permit plaintiff to be falsely arrested, detained and imprisoned.

255. It was part of said conspiracy that said defendants did fail to protect the plaintiff, and his property/evidence from known harms while he and it (the property/evidence) was in their custody.

256. In furtherance of the conspiracy and in order to cover up their unlawful conduct, defendants engaged in the following:

- a. Deleting and destroying the photographic, audio and visual recording(s) on plaintiff's cellular telephone, and/or video camera;
- b. Fabricating and contriving criminal reports and/or records;
- c. Re-arresting plaintiff after the District Attorney's Office declined prosecution;
- d. Providing false statements to the District Attorney's Office;
- e. Tampering with evidence;
- f. Securing a search warrant based on false, misleading testimony;
- g. Violating Patrol Guidelines;
- h. Fabricating criminal charges;
- i. Although they were aware of the subject events and were required to report it, deliberately suppressing the truth; and
- j. Submitting false reports, statements and/or testimony to support and corroborate the fabricated allegations lodged against the plaintiff, for their own benefit.

257. As a result of said conspiracy and/or said defendants' furtherance of the conspiracy, plaintiff has been injured and deprived of the rights and privileges afforded by the Constitution and statutes of the United States of America.

258. Said defendants had knowledge that a 42 U.S.C § 1985(3) conspiracy was in progress, had the power to prevent or aid in preventing the conspiracy from continuing, and neglected or refused to do so.

259. With due diligence, said defendants could have promptly reported the subject events to superiors and to duly authorized investigators. Their failure to do so contributed to the plaintiff's injuries.

260. Had said defendants complied with the law and furnished truthful information to authorities, their conduct and/or plaintiff's conduct, the § 1985(3) conspiracy would not have succeeded to the extent that it did.

261. As a proximate and direct cause of said defendants' conduct, the plaintiff suffered loss of liberty, and incurred legal expenses as well as psychological and emotional injuries and destruction of property.

262. As a result of the foregoing, plaintiff is entitled to compensatory damages, punitive damages, attorney's fees (42 USC 1988), expert's fees, costs and disbursements.

AS AND FOR A SIXTEENTH CLAIM FOR RELIEF: RETALIATION
UNDER 42 U.S.C. § 1983 AND THE UNITED STATES CONSTITUTION AGAINST
ALL NAMED DEFENDANT OFFICERS

263. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "262" with the same force and effect as if more fully and at length set forth herein.

264. Plaintiff's right to record police public activities is protected by the First Amendment.

265. Plaintiff's right to post videos online, report and speak about police activities is protected by the First Amendment.

266. Plaintiff's right to join, organize, and be part of the CopWatch Patrol Unit is protected conducted under the First Amendment.

267. There was no legitimate or lawful reason for the defendants to stop plaintiff, detain, arrest and imprison him; seize his property, search and seize his cellular telephones and video devices, tamper with said devices and destroy and tamper with evidence.

268. Accordingly, it is clear that the aforesaid conduct was done with the intent and purpose to delete evidence, elevate charges, fabricate and maintain criminal charges, secure a search warrant under false criminal pretenses, and submit false reports and criminal charges against the plaintiff.

269. Upon information and belief the defendants failed to intervene or report, and actively participated in laughing, clapping, mocking and celebrating plaintiff's arrest in retaliation of plaintiff exercising his First Amendment rights.

270. The aforesaid conduct was also done in an attempt to chill plaintiff's future inclination(s) to exercise his First Amendment rights.

271. As a result of the foregoing, plaintiff was harmed and is entitled to an award of compensatory damages against all defendants, and punitive damages against the individual defendants, together with attorney's fees (42 USC 1983), costs and disbursements.

**AS AND FOR SEVENTEENTH CAUSE OF ACTION FOR RELIEF: "MONELL
LIABILITY" AGAINST THE CITY OF NEW YORK
UNDER 42 U.S.C. 1983 AND 1988**

272. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "271" with the same force and effect as if more fully and at length set forth

herein.

273. The defendant officers acts and omissions described above were carried out pursuant to the City's overlapping customs and practices and/or their deliberate indifference thereto, which were in existence on August 5, 2016 and August 6, 2016 and were engaged in with full knowledge, consent, and cooperation and under the supervisory authority of the City, its agency, the NYPD, and Nikunen and/or O'Sullivan.

274. The acts complained of were carried out by the defendant officers in their capacities as police officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD, including but not limited to Nikunen, O'Sullivan, Dym and others.

275. The aforementioned custom and practice of the City and the NYPD include, but are not limited to the following:

- a. Making retaliatory arrests against persons who lawfully photograph, document or record police activity;
- b. Arresting persons known to be innocent particularly where such persons are negated in activity protected by the First Amendment and/or the consent decree Black v. Codd;
- c. Deleting or tampering with evidence documenting improper or illegal police conduct;
- d. Deleting or tampering with exculpatory evidence;
- e. Illegally accessing electronic equipment ;
- f. Prosecuting and maintaining prosecution of crimes against persons who lawfully photograph, document or record police activity; and
- g. Targeting persons, groups or organizations who record police activity.

276. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following incidents and civil rights actions filed against the City:

Journalists and Photographers

a. May 30, 2007/ Robert Carneval/ Carneval v. City of New York, 08 CV 9993 (DAB)(AJP)(S.D.N.Y)

A Manhattan photographer, Robert Carneval, was arrested after filming NYPD officers in the East Village as they seized and loaded bikes, which had been locked to lampposts and parking meters, into a police van. After the photographer began filming and discussing the removals with another man, a plainclothes officer asked him for identification. When the photographer stated he had a right to film, the officers led him to a police car, examined his ID, then arrested him. Colin Moynihan, City Settles with Two arrested After Police Confrontation, The New York Times (March 31, 201), <http://cityroom.blogs.nytimes.com/2010/03/31/city-settles-with-pair-arrested-after-police-confrontation/>.

b. November 2011/Patrick Hedlund, Paul Lomax, Matthew Lysiak, Karen Mathews, Julie Walker, and Seth Wenig

In November of 2011, at least six journalists were arrested while covering the raid and eviction of Occupy Wall Street protesters from Zuccotti Park. Thirteen news organizations in New York City lodged complaints about the treatment of journalists and the suppression of coverage of the event, and ten press clubs, unions, and other groups called for an investigation into the police conduct at issue. CBS New York/ AP, Several Journalists Among Those Arrested during Zuccotti Park Raid, CBS New York (November 15, 201), <http://newyork.cbslocal.com/2011/11/15/officials-journalists-among-those-arrested-during-zuccotti-park-raid/>; Brian Stelter, News Organizations Complain About Treatment During Protests, the New York Times: Media Decoder (November 21, 2011), <http://mediacodecder.blogs.nytimes.com/2011/11/21/news-organizations-complain-about-treatment-during-protests/>.

c. November 15, 2011/ Timothy Fitzgerald/ Rodriguez v. Winski, 12 CV 3389 (NRB)(S.D.N.Y)

On or about November 15, 2011, in Zuccotti Park, a publically accessible open space, several police officers grabbed Timothy Fitzgerald, a citizen reporter who was documenting protests activities and police response to same, pulled him to the ground and arrested him.

d. **November 15, 2011/Douglas Higginbotham/ Higginbotham v. The City of New York, 14 CV 8549 (PKC)(S.D.N.Y)**

On November 15, 2015, Mr. Higginbotham, a freelance video-journalist for TV New Zealand was arrested in retaliation for filming police activity associated with Occupy Wall Street.

e. **March 2012/ Unknown**

In March of 2012, a cameraman from WABC-TV was struck by an officers at crime scene for unknown reasons. Carlos Miller, *NYPD Cop Assaults New Videographer At Crime Scene, Photography Is Not A Crime* (March 22, 2012), <http://photographyisnotacime.com/2012/03/22/nypd-cop-assaults-news-videographer-at-crime-scene/>

f. **August 4, 2012/ Robert Stolarik**

Photographer Robert Stolarik, who worked regularly for the New York times for more than a decade, was charged with obstructing government administration and resisting arrest after talking photographs of a brewing street fight at McClellan Street and Sheridan Avenue in the Bronx. Mr. Stolarik was taking photographs of the arrest of a teenage girl about 10:30 p.m., when a police officer instructed him to stop doing so. Mr. Stolarik said he identified himself f a as a journalist for The New York Times and continued taking pictures. A second officer appeared, grabbed his camera and “slammed” it into his face m he said. The arresting officer was later indicted for falsifying statements surrounding Mr. Stolarik’s arrest. Russ Buettner, *Officer Is Indicted on Charges of Lying About Photographer’s Arrest*. The New York times (Aug. 26, 2013), <http://www.nytimes.com/2013/08/27/nyregion/officer-is-indicted-on-charges-of-lying-about-photographers-arrest-html>.

g. **September 15-17, 2012/ John Knefel, Charles Meacham, and Julia Reinhart**

Five photojournalists reporting on Occupy Wall street protester were arrested in course if their reporting. One photographer was arrested after attempting to take a picture of an officer giving a dispersal order in a sidewalk. Another was forced to the ground and detained while another was shoved and blocked from taking a photo by a Lieutenant in the NYPD’s Legal bureau. Christopher Robbins, *NYPD’s pattern of harassing, arresting journalists continues*, Gothamist (Sep. 19, 2012), http://gothamist.com/2012/09/19/nypds_harrasment_of_journalists_con.php.

h. **September 12, 2012/ Christopher Farone/ Farone v. City of New York et.al. 13 CV 09074 (TPG)(S.D.N.Y)**

Christopher Faraone, a journalist, was photographing a public demonstration at One Chase Manhattan Plaza when NYPD officers tackled, battered and arrested

him. One of the officers directed him to cease his reporting activities within New York City.

i. **December 12, 2011 & March 15, 2012/ John Knefel, Paul Sullivan, and Justin Wedes/ Rodriguez v. Winski, 12 CV 3389 (NRB)(S.D.N.Y.)**

On December 12, 2011, Paul Sullivan, John Knefel and Justin Wedes, citizen reporters who were documenting protest activities and police response to same at the Winder Garden, a publicly accessible open place, were grabbed, pulled to the ground and arrested without warning or probable cause by the NYPD. On March 15, 2012, Mr. Wedes was again threatened with arrest for the same legal activity.

j. **November 27, 2012/ Angel Zayas/ Zayas v. Kelly, 13 CV 08808 (JMF) (S.D.N.Y.)**

On November 27, 2012, a freelance photographer, Angel Zayas, was arrested for photographing officers effect an unrelated arrest in Grand Central Terminal. Daniel Beekman, *Photographer trying to shoot stop and frisk sues NYC over police harassment*, New York Daily News (Dec. 13, 2013), <http://www.daileynews.com/news/justice-story/photog-shooting-frisking-sues-nyc-harrasment-article-1.1546548>

k. **January 16, 2013/ Shimon Gifter**

A photographer from VIN News, a media outlet for the Orthodox Jewish community, had his camera seized and thrown to the ground, his memory card erased, and his Blackberry damaged after photographing officers stopping and frisking several young men. The photographer was also handcuffed and held up against a wall before being released with a warning. Boruch Shubert, *Police Brutality in Midwood?* The Jewish Voice (Jan. 24, 2013), <http://jewishvoicenyc.com/index.php?option=comcontent&view=article&id=2978:police-brutality-in-midwood&catid=106:international&Itemid=289>; Sandy Eller, *Charedi Photographer Claims Handcuffed by NYPD After Videotaping Flatbush Police Stop, Voz Iz Neias?* (Jan. 20, 2013), <http://www.vosizneias.com/122118/2013/01/20/brooklyn-ny-charedi-photographer-claims-handcuffed-by-nypd-after-videotaping-flatbush-police-stop/>.

l. **April 19, 2013/ Justin Thomas/ Thomas v. City of New York, 13 CV 6139 (SJ) (LB)(E.D.N.Y.)**

A film student was arrested filming the exterior of the 72nd Precinct on April 19, 2013. Officers confiscated the student's cell phone, camera, and then the camera's memory card, as well as his friend's memory card from a camera. Officers failed to remove the correct memory card from the friend's camera. However, leaving evidence of the encounter.

m. March 16, 2016/ Ed Garcia Conde

Mr. Conde, a journalist who writes for the Welcome 2 Melrose blog, recorded an interaction between an NYPD officer and a man who the officer believed was violating the open container law. The officer asked Mr. Conde to stop recording, and when he refused, he was given two summonses, one of open container and the other for attempting to create a dangerous situation. Ben Yakas, *Video: Bronx Man Hauled to Jail for Exercising Right to Videotape Cops*, Gothamist (Mar. 16, 2013), http://gothamist.com/2013/03/16/video_bronx_man_hauled_to_jail_for.php

n. February 9, 2005/ Lumumba Bandele, David Floyd, and Djibril Toure/ Bandele v. The City of New York, 07 CV 3339 (MGC)(S.D.N.Y.)

Lumumba Bandele, David Floyd, and Djibril Toure were arrested while videotaping two arrests in Bedford-Stuyvesant, Brooklyn, on February 9, 2005. "In trying to stop the police from violating the rights of others, they had their rights violated," said Kamau Franklin, a lawyer with the Center for Constitutional rights. *Metro Briefing: New York; Manhattan: Lawsuit Against The Police*, the New York Times (Apr. 27, 2007), <http://query.nytimes.com/gts/fullpage.html?res=9C02E2DD123EF934A15757C0A9619C8B63>.

o. September 29, 2009/Dennis Flores/Mesa v. City of New York, 09 CV 10464 (JPO)(S.D.N.Y.)

On September 29, 2009, Dennis Flores was arrested when he photographed NYPD officers using excessive force to disperse a crowd at a festival in the Bronx. At one point prior to Flores's arrest, an NYPD officer stated it was "illegal to photograph police."

p. October 17, 2010/ Anibal Ortiz/ Ortiz v. City of New York, 11 CV 7919 (JMF)(S.D.N.Y.)

On October 17, 2010, Anibal Ortiz was arrested after he began recording NYPD officers, who asked him for identification, with a cell phone camera.

q. July 11, 2011/George Hess and Caroline Stern/ Stern v. City of New York, 12 CV 04863 (SAS) (S.D.N.Y.)

On July 11, 2011, Caroline Stern was arrested and her boyfriend George Hess, was tackled and arrested after he began video recording an encounter with officers in a subway station. Kathianne Boniello, *Couple handcuffed, jailed for dancing on subway platform: lawsuit*, The New York Post (July 8, 2012), <http://nypos.com/2012/07/08/couple-handcuffed-jailed-for-dancing-on-subway-platform-lawsuit/>

r. January 10, 2012/Justin Sullivan/Rodriguez v. Winski, 12 Cv 3389 (NRB)

On January 10, 2012, Justin Sullivan was arrested for filming an Occupy Wall Street protest at Grand Central Terminal and his camera was confiscated. Later, Mr. Sullivan returned to the police precinct at the terminal to retrieve his camera and he was re-arrested. A witness reported an officer destroyed Mr. Sullivan's camera.

s. April 27, 2012/ John Runnells/ Runnells v. City of New York, 13 Cv 2904 (KBF) (S.D.N.Y.)

On April 27, 2012, John Runnell's camera was seized and its footage erased after he video recorded a police traffic checkpoint. Mr. Runnells continued recording the officers after his camera was returned, and he was subsequently arrested. Once again, his camera was seized and the footage deleted.

t. June 5, 2012/Hadiyah Charles/Charles v. City of New York, 12 CV 06180 (SLT)(SMG)(E.D.N.Y.)

On June 5, 2012 a woman pushed and arrested for using her phone to video record the stop-and-frisk of three unrelated young men on a public sidewalk. Rocco Parascandola, Woman suing NYPD for wrongful arrest discovers that a key piece of evidence has mysteriously vanished from the Brooklyn stationhouse, New York Daily News (Oct. 17, 2013), <http://www.nydailynews.com/new-york/brooklyn/brooklyn-precinct-log-book-mystery-article-1.1487721>

u. August 2012/Unknown

In August of 2012, a nab was threatened with arrest for filming outside about 300 feet away from the security checkpoint at One Police Plaza. Carlos Miller, *NYPD Cop Fails at Intimidating Man from Video Recording Police Headquarters, Photography Is Not A Crime* (Aug. 12, 2012), <http://photographyisnotacrime.com/2012/08/17/nypd-cop-fails-at-intimidating-man-from-video-recording-police-headquarters/>

v. September 28, 2012/ Santos Bobet/ Bobet v. The City of New York, 14 CV 1396 (WHO)(JLC)(S.D.N.Y.)

On September 28, 2012, at approximately 8:55 p.m., Santos Bobet observed someone being arrested near Whitlock Avenue 6 Station in the Bronx. After beginning to videotape the arrest, he was arrested by Officer Kelvin Prado, who then along with his partner deleted the video footage.

w. May 16, 2013/ Christina Gonzalez and Matthew Swaye

Two Harlem residents were arrested after they filmed NYPD officers conduct stop-and-frisks at a car checkpoint. Christina Gonzalez and Matthew Swaye said they were returning from a Bronx Mall at about 10:30 p.m. when they noticed several vehicles stopped and Gonzalez took out her camera to begin filming. Jeff Mays, *'Professional Agitators' on NYPD 'Wanted' Flier Arrested After Filming Stop*, DNA Info (May 21, 2013), <http://www.dnainfo.com/new-york/20130521/central-harlem/proffesional-agitators-on-nypd-wanted-flier-arrested-filming-stop>

x. June 5, 2013/ Rahul Saksena/ Saksena v. The City of New York, 14 CV 5129 (JBW)(LB)(E.D.N.Y.)

On June 5, 2014, at approximately 10:00 p.m., Mr. Saksena was arrested in retaliation for filming a civilian police interaction in the Bushwick section of Brooklyn.

y. August 26, 2013/ Jonathan Harris

NYPD officers arrested a Bronx teenager, Johnathan Harris, after he was filming the officers attack and threatened two young girls in a Bronx park. The teenager told officers to leave the girls alone and began filming them on his phone. The officers began chasing him, tackled him and punched him before arresting him. Jennifer Cunningham, *Teens say they were beaten by cops in Bronx park*, New York Daily News (Aug. 29, 2013) <http://www.nydailynews.com/new-york/bronx/teens-mauled-cops-article-1.1440394#ixzz2eVh68jgw>

z. September 19, 2013/ Sean Basinki/ Basinki v. The City of New York, 14 CV 1057 (LTS)(S.D.N.Y.)

On September 19, 2013, a lawyer, Sean Basinki was arrested while using a phone to record police during a rally in front of Midtown North Precinct police station on West 54th Street. Clin Moynihan, *Street Vendors Protest Treatment by Police*, The New York Times (Oct. 2, 2013), http://www.nytimes.com/2013/10/03/nyregion/street-vendors-protest-treatment-by-police.html?_r=0

aa. 2013/ Debra Goodman/ Goodman v. City of New York, 14 CV 5261 (CM)(S.D.N.Y.)

Officers arrested Ms. Goodman for filming their interaction with a citizen requiring medical attention. After she began, the officer demanded for her to produce identification, and arrested her when she refused. The New York County District Attorney's Office ultimately dismissed all the charges.

bb. March 12, 2014/ Jason Disisto/ Disisto v. The City of New York, 15 CV 03296 (GHW)(S.D.N.Y.)

Mr. Disisto was arrested while attempting to film an officer search the bag of an acquaintance. The officers threw the cell phone out of the police vehicle. The entirety of the interaction was captured by a security camera. Natasha Vargas-Cooper, *Video: NYPD attacks and Arrest Man for Filming a Cop Pawing a Woman*, Jezebel (May 4, 2015), <http://jezebel.com/video-nypd-attacks-and-arrests-man-fro-filming-a-cop-p-1701890381>

cc. April 2, 2014/ Wajid Kahlil Al-Qadaffi/ Al-Qadaffi v. The City of New York, 15 CV 0052 (PAE)(S.D.N.Y.)

On April 2, 2014, Mr. Al-Qadaffi was detained by members of the NYPD in retaliation for recording police activity.

dd. July 18, 2014/ Ruben An/ An v. City of New York, 16 cv 05381 (LGS)(S.D.N.Y.)

Mr. An observed three NYPD officers questioning another man and began filming the interaction on his cellphone. An officer advised Mr. An to step back and he complied. The officer threatened Mr. An with a disorderly conduct summons and requested identification. Mr. An did not produce identification and continued filming. The officer then twisted Mr. An's arm, confiscated his cellphone, and arrested him for obstruction of governmental administration and disorderly conduct. A jury trial took place and returned a not-guilty verdict on all counts. Nathan Tempey, *Video: Activist Sues City After Cops Arrest Him for Filming*, Gothamist (July 6, 2016), http://gothamist.com/2016/07/06/filming_nypd_lawsuit.php

ee. September 5, 2014/ Deyan Fang/Fang v. City of New York, 15 CV 04886 (NRB)(S.D.N.Y.)

Mr. Fang was working as a street vendor selling drawing when the police arrived and asked him for identification. He complied and began recording the incident. The NYPD officers arrested him and charged him with resisting arrest and a statutory violation for standing within ten feet of a crosswalk. The charges were adjourned in contemplation of dismissal. The plaintiff's phone was held by the District Attorney's Office for two months, and when it was returned, the video of the incident had been deleted.

ff. January 202, 2015/ Joel Delorbe-Bell/ Delorbe-Bell v. City of New York, 15 CV 02344 (LGS)(S.D.N.Y.)

Mr. Delorbe-Bell was a passenger in a car that the NYPD pulled over for tinted windows. Mr. Delorbe-Bell began recording when officers ordered him out of the

car, grabbed him by the hand in which he had the phone, searched him, and handcuffed him. He was arrested and charged with disorderly conduct, which was subsequently dismissed at the first court appearance.

gg. March 29, 2015/ Daniel Teitell/ Teitell v. City of New York, 15 CV 4187(JG)(JO)(E.D.N.Y.)

Mr. Teitell was arrested filming officers interrogate a man in a public park at night. The officers explicitly told him that they were arresting him rather than giving a citation because he had decided to film them (the citation also would have been unjustified as the park was open to the public at the time).

hh. July 3, 2015/ Luis Gonzalez/ John v. Demaio, 15 CV 06094 (NGG)(E.D.N.Y.)

Mr. Gomez was at a barbecue when police arrived and began searching people. Luis Gomez began recording. Officers told him to put the phone away and grabbed him, handcuffed him, and charged him with disorderly conduct. The case was adjourned in contemplation of dismissal.

ii. August 10, 2015, Benjamin Beckford/ Beckford v. City of New York, 16 CV 02261 (AKH)(S.D.N.Y.)

Mr. Beckford recorded an incident of police searching his family in front of their home. He was arrested as a result of the filming, and subsequently released, without charges and without any explanation.

jj. March 14, 2016/ Dennis Flores

Mr. Flores, founder of the police watchdog group El Grito de Sunset Park, was arrested for jaywalking after filming NYPD Strategic Response Group officers during a protest in the Bronx. *A Week of Crackdowns on Activists and Copwatchers in NYC*, Huffington Post (Mar. 17, 2016) http://huffingtonpost.com/josmar-trujillo/a-week-of-crackdowns-on-a_b_9484768.html

kk. March 16, 2016/Ramsey Orta

Ramsey Orta, the man who videotaped the killing of Eric Garner, was arrested in the process of videotaping NYPD officers making an arrest. He was also arrested in February for assaulting his wife, but both Mr. Orta and his wife say this is a lie. According to Mr. Orta, the NYPD has been engaging in a pattern of harassment even since he filmed Mr. Garner's death in July of 2014. Ben Keller, *NYPD Arrest Ramsey Orta, Man who Recorded Eric Garner Death, for Recording Too Closely*, Photography Is Not a Crime (Mar. 19, 2016), <http://photographyisnotacrime.com/2016/03/19/nypd-arrest-ramsey-orta-man-who-recorded-eric-garner-death-for-recording-too-closely/>

ll. March 17, 2016/Joseph Hayden and Five Mualimm-ak

Mr. Hayden and Mr. Mualimm-ak, prisoners' rights and mental health activists, filmed an interaction between two NYPD officers and a homeless man who appeared in a headlock. Both men were arrested and charged with obstructing governmental administration and disorderly conduct. Victoria Law, *It's 2016 and the NYPD Will Still Arrest You For Filming Them*, Gothamist (Mar. 17, 2016) http://gothamist.com/2016/03/17/nypd_arrest_video_edp.php

mm. May 20, 2016/ Calvin West

Mr. West filmed an NYPD officer in the process of an arrest. After the arrest, the officer pointed a loaded gun at and punched Mr. West who filmed the interaction. The officer was placed on modified duty once the video surfaced. *Man Speak Out After Filming Arrest in which NYPD Officer Pointed Gun at Him*, Pix 11 (May 23, 2016), <http://pix11.com/2016/05/23/man-speak-out-after-filming-arrest-in-which-nypd-officer-pointed-gun-at-him/>

nn. June 11, 2016/ Threstan Ralph

Mr. Ralph observed five NYPD officers handcuffing a woman and recorded the interaction. An officer arrested him and charged him with disorderly conduct simply for filming the interaction. John Marzulli, *Exclusive: NYPD Accused of Arresting Man for Recording Video of Cops Cuffing Woman*, New York Daily News (June 16, 2016), <http://nydailynews.com/new-york/nypd-accused-arresting-man-recording-video-cops-article-1.2675620>

oo. June 15, 2016/ David Rivera

Mr. Rivera was filming an interaction involving NYPD officers taking place in a hallway in his building. The sergeant pointed a gun at him. Then, while Mr. Rivera was standing in his own apartment continuing to film, the sergeant unlawfully entered his apartment and arrested him. The Brooklyn District Attorney's Office declined to prosecute the case, John Marzulli, *See It: Infamous NYPD Sergeant Points Gun at Man Recording Her, then Busts Into Apartment and Arrests Him*, New York Daily News (June 5, 2016),

pp. May 19, 2015, Esteban Barber v. The City of New York

On May 19, 2015, Mr. Barber was filming interaction involving NYPD officers arresting an unknown individual in Manhattan County. NYPD officers saw Mr. Barber filming the incident and an unknown NYPD officer struck Mr. Barber in the chest so hard that Mr. Barber fell backwards and caused his phone to fall to the ground. Mr. Barber suffered deep contusions to the chest and received medical attention.

Observation of Officers**qq. January 2, 2009/ Marrero v. City of New York, 09 CV 7924 (VM)(S.D.N.Y.)**

Mr. Marrero was assaulted and arrested by NYPD officers after he observed them falsely arrest his friend and then announced his intention to file a complaint against said officers.

rr. May 9, 2009/Jameel Preddie/ Preddie v. City of New York, Index No.: 302566/11 (Sup. Ct. Bronx County)

Numerous NYPD officers beat and then arrested Jameel Preddie after he observed and objected to NYPD officers using excessive force in the course of an arrest of another.

ss. August 1, 2011/Alexandra Castillo, Ricardo Hanson, and John Parker/ Parker v. City of New York, 13 CV 3891 (AT)(S.D.N.Y.) and Castillo v. City of New York, 14 CV 3583 (WHP)(S.D.N.Y.)

Three lifeguards, John Parker, Ricardo Hanson and Alexandra Castillo, leaving work were arrested in Central Park in retaliation for their observation from a reasonable distance of a police investigation of another.

tt. August 3, 2013/ Nicholas Behncke/ Behncke v. City of New York, 14 CV 0009 (ARR)(JO)(E.D.N.Y.)

NYPD officers Mr. Behncke after he observed another being threatened with arrest inside of a subway station.

uu. March 14, 2016/ Naratu Otulana, Channing Tyner, Rachel Levine, Joshua Kristal, and Terrence Slater

Ms. Otulana, Mr. Tyner, Ms. Levine, Mr. Kristal, and Mr. Slater observed the arrest of Joseph Hayden and Five Mualimm-ak and offered support to their fellow activists. All five were handcuffed and detained for more than two hours before being issued summons for failure to disperse. Victoria Law, *It's 2016 and the NYPD Will Still Arrest You For Filming Them*, Gothamist (Mar. 17, 2016) http://gothamist.com/2016/03/17/nypd_arrest_video_edp.php

vv. August 17, 2015, Michael Bento v. The City of New York

On August 17, 2015, Michael Bento was lawfully protesting in Manhattan County. While Mr. Bento was peacefully marching he was pushed to the ground By an NYPD officer who dragged him to the ground and put him in a chokehold. Mr. Bento was transported to the 17th pct. were he was issued a summons for

disorderly conduct.

All of the forgoing acts by defendants deprived the plaintiff of federally protected rights.

Political Activism

ww. August 17, 2015/ Michael Bento v. The City of New York

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xx. May 19, 2015/ Esteban Barber v. The City of New York

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yy. September 24, 2011/ Christina Gonzalez

On September 24, 2011 Christina Gonzalez was involved in a political protest and videotaped police activity, when she was grabbed and arrested and face to the ground in retaliation for exercising her right to film.

zz. January 1, 2012/ Christina Gonzalez

On January 1, 2012 Christina Gonzalez was on said date engaged in a peaceful protest on a public sidewalk in compliance with lawful orders. Police began to arrest protesters and when Ms. Gonzalez filmed the activity, she also was arrested.

aaa. June 17, 2012/ Christina Gonzalez

On June 17, 2012 Christina Gonzalez was videotaping another police protest when she was retaliated against, and wound up arrested for exercising her First Amendment Right.

bbb. July 31, 2012/ Christina Gonzalez

On July 31, 2012 Christina Gonzalez was warned to stop videotaping a police officer, Medina, Medina arrested Gonzalez and damaged her property.

Deleting/Tampering with Evidence

ccc. See Justin Sullivan/ Rodriguez v. Winski: above;

John Runnells (above)

Hadiyah Charles (above)

Santos Bobet (above)

Deyan Fang (above)

ddd. September 17, 2015/ Jose LaSalle

On September 17, 2015 Mr. LaSalle was attacked by two security guards at St. Barnabas Hospital. This event was witnessed by NYPD officers who failed to intervene. Mr. LaSalle was later arrested and charged with the crimes of misdemeanor assault, menacing, trespass and harassment.

eee. June 14, 2012/ Dick George/ George v. City of New York et.al., 13 CV 3108

On June 14, 2012 Dick George was illegally stopped, threatened and stripped searched. Part of the encounter was videotaped and the officers thwarted and deleted all photographs, audio and video recordings from his cellular phone, and later submitted false statements. Said case involved a police Lt. and a Sgt.

275. Defendant City knew or should have known that the acts alleged herein would deprive the plaintiff of his rights, in violation of the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

276. Defendant City is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD, and to require compliance with the Constitution and laws of the United States.

277. Despite knowledge of such unlawful de facto policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the City, including Commissioner Bratton and Former Commissioner Kelly, did not have and have not taken steps to terminate the policies, practices and/or customs, or otherwise properly train police officers

with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

278. The aforementioned City policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, the individual defendants felt empowered to exercise unreasonable and wholly unprovoked force against plaintiff, arrest plaintiff without probable cause and then fabricated and swear to a false story to cover up their blatant violations of plaintiff's constitutional rights.

279. The supervisory staff within the NYPD and the command structure of the NYPD knew and/or knows that the pattern of police harassment, intimidation, cover-up, destruction of evidence, fabrication of charges, interference with the right to a fair trial as described above, existed and still existed within the NYPD. The NYPD's failure to take measures to curb this pattern of abuse constitutes acquaintance in the known unlawful behavior of its officers. The prevalence of these practices and general knowledge of their existence, and the failure of these defendants to take remedial action despite the fact that the foregoing has been persistently brought to the NYPD's attention, constitutes deliberate indifference to the rights and safety of the public in general, and plaintiff in particular. The defendants' conduct has been a substantial factor in the continuation of such violence and a proximate cause of the constitutional violations alleged in this Complaint.

280. NYPD operates under a system-wide policy. With some exceptions, the NYPD trains all of its officers at a single Training Academy according to a uniform curriculum; maintains a centralized Investigation Division to investigate allegations such as those contained herein under uniform procedures; and maintains a centralized unit to conduct administrative prosecutions (or to decline to prosecute, or to plea-bargain) in those few instances where the NYPD substantiates the allegation(s).

281. The supervisory staff of the NYPD has consistently failed to investigate allegations such as those contained herein and to discipline officers who have violated NYPD guidelines. The investigation of these incidents by central office and/or supervisory staff reflects a bias in favor of uniformed officers. Furthermore, officers and staff who are known to have violated an individual's civil rights in one command are often transferred by NYPD to another command rather than be disciplined, demoted or fired by the NYPD.

282. Upon information and belief, the pattern of misconduct alleged in the Complaint herein, has been condoned or tolerated by ranking commanders and supervisors of the NYPD, who have been or are aware of the number, frequency, and severity of these incidents and of the continuing risk of false arrest, false imprisonment, malicious prosecution at the hands of uniformed officers. Supervisors receive and/or received a daily compilation of reports from NYPD commands documenting violent incidents, including an officer's use of force. These reports, which are circulated throughout the NYPD, contain brief summaries of the incident. These summaries have documented, and continue to document, the routine application of intimidation, police stops, searches, false arrests and imprisonments, and false criminal charges being asserted by officers under circumstances which very often suggest that the officer's accounts are fabricated to cover up brutality and other misconduct. These reports routinely document injustices the same or

similar to the allegations contained herein, and consistently find no basis to question the officer's conduct, even when the officer reports describe conduct which is proscribed by NYPD written policy or fail to account for the arrestee's injuries.

283. With rare exception, officers whose misconduct is brought to the attention of supervisory personnel continue to work without any substantial disciplinary action being taken against them. Many of these officers are simply transferred to another precinct, where their misconduct continues. Although the NYPD has a computerized system capable of identifying officers involved in multiple unlawful arrests and/or cover-ups, this information has not been utilized by NYPD commanders or supervisors to reduce the severity or incidence of these events. The fact that these abuses by officers remain unchecked and unrestrained leads the staff to believe that they may act with impunity.

284. Similarly, City and NYPD officials and supervisory staff have consistently failed to meaningfully and filling to investigate CCRB and IAB complaints of police harassment and intimidation, retaliation, unlawful police stops, false arrest and detention, police cover-ups, officer disrespect, retaliation, violations of NYPD guidelines, as well as other misconduct; and have failed to discipline the subjects of those grievances and complaints which were substantiated.

285. Plaintiff's injuries were a direct and proximate result of the defendant City and the NYPD's wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant City and the NYPD to properly supervise, train and discipline their police officers.

286. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were

directly responsible for the violation of the plaintiffs' constitutional rights.

287. As a result of the foregoing, plaintiff is entitled to compensatory damages, punitive damages, attorney's fees (42 USC 1988), expert's fees, costs and disbursements.

**AS AND FOR EIGHTEENTH CAUSE OF ACTION FOR RELIEF, PRIVACY
PROTECTION ACT- 42 U.S.C. § 2000 aa. et seq.
(AGAINST THE CITY OF NEW YORK)**

288. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "287" with the same force and effect as if more fully and at length set forth herein.

289. One or more of the individual- defendants, while acting within the course and scope of their employment and under color of law, destroyed documentary materials and/or work product materials which the officer-defendants reasonably believed or should have reasonably believed plaintiff intended to use to disseminate the above-described incident to members of the public.

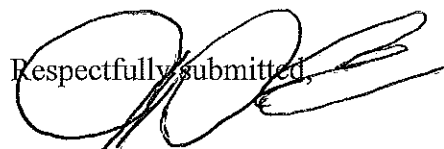
290. As a result, plaintiff was damaged and otherwise harmed as set forth above.

WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and pray for relief under the First through the Eighteenth causes of action as follows:

- a. That he be compensated for violations of his constitutional rights, imprisonment, pain, suffering, mental anguish, legal fees, destruction of evidence and humiliation;
- b. That he be awarded punitive damages against the individual defendants;
- c. That he be compensated for attorneys' fees and the costs and disbursements of his action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
May 2, 2017

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'JEFFREY L. EMDIN', is written over the words 'Respectfully submitted,'.

Jeffrey L. Emdin, Esq.
Emdin & Russell, LLP
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

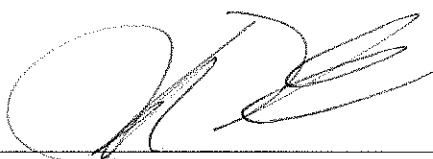
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
May 3, 2017


By: Jeffrey L. Emdin, Esq.

INDEX NO.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSE LASALLE,

Plaintiff,

-against-

THE CITY OF NEW YORK; POLICE OFFICER FELIX BAEZ, TAX ID # 953654, INDIVIDUALLY AND AS A POLICE OFFICER; POLICE OFFICER ELVIS DURAN, SHIELD # 21865, INDIVIDUALLY AND AS A POLICE OFFICER; DET. JUAN TEJERA, TAX ID # 919967, MTS DET. SQUAD, INDIVIDUALLY AND AS A POLICE OFFICER; SGT. MIGUEL FRIAS, TAX ID# 930184, INDIVIDUALLY AND AS A POLICE OFFICER; ASSISTANT CHIEF, LARRY W. NIKUNEN, COMMANDING OFFICER BOROUGH BRONX, TAX ID # 882753, INDIVIDUALLY AND AS A POLICE OFFICER; LT. ERIC DYM, TAX ID # 933762, INDIVIDUALLY AND AS A POLICE OFFICER; DEPUTY INSPECTOR JERRY P. O'SULLIVAN, COMMANDING OFFICER, PSA 7, TAX ID # 902151, INDIVIDUALLY AND AS A POLICE OFFICER; LT. JOE DOE, IDENTITY PRESENTLY UNKNOWN, INDIVIDUALLY AND AS POLICE OFFICER; SGT. JIM DOE, IDENTITY PRESENTLY UNKNOWN, INDIVIDUALLY AND AS POLICE OFFICER; P.O. JOHN DOES # 1-10, IDENTITIES PRESENTLY UNKNOWN, INDIVIDUALLY AND AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, NY 10018

(212) 683-3995

To: City of New York
c/o Corporation Counsel
100 Church Street
New York, New York 10007

P.O. Felix Baez, Tax ID # 953654
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Det. Juan Tejera, Tax ID# 919967
c/o Midtown South, Detective Squad
357 W 35th Street
New York, NY 10001

P.O. Elvis Duran, Shield # 21865
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Sgt. Miguel Frias, Tax ID# 930184
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Assistant Chief Larry W. Nikunen, Tax ID# 882753
c/o Patrol Boro Bronx
450 Cross Bronx Expy
Bronx, NY 10457

Lt. Eric Dym, Tax ID # 933762
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Deputy Inspector Jerry P. O'Sullivan, Tax ID# 902151
c/o PSA 7
737 Melrose Ave
Bronx, NY 10455

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: May 3, 2017

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- [] NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on
- [] NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on